

Case Brief: A.B. v. Toronto Catholic District School Board

Style of Cause and Citation:

A.B. v. Toronto Catholic District School Board, 2024 HRTO 739

Facts:

- A.B.'s mother alleges that her daughter has suffered long-term discrimination that included both racial and sexualized comments
- A.B.'s mother met with multiple educational personnel about her concerns but the problems did not stop, she feels that the school board's response was inadequate and constituted discrimination against A.B. which is the motivation behind the action now

Issue:

- Does the action have a reasonable prospect of success, which means what needs to be proven is that the School Board's handling of the alleged bullying incidents qualifies as discrimination under the Code

Decision:

- The courts decided that the Application does not have a reasonable prospect of success because the applicant failed to prove direct connection of discrimination to the respondent

Reasons:

- Establishing emotional distress is not enough, there must be a link shown between the alleged bullying and the School Board's conduct
- The bullying is terrible, but it does not implicate the School Board's action or inaction as itself discriminatory
- The courts stated that the applicant made vague and general claims that did not provide evidence that she was subject to discrimination by the respondent because of the Code grounds.
- As outlined in *Forde*, there must be some evidence beyond speculation and allegations of discrimination

Ratio:

- For an application to go past the summary hearing, it must be proven that the application has a "reasonable prospect of success" and the applicant must prove a

prima facie case of discrimination, once doing so the onus is shifted to the respondent to justify its actions under the *Code*

Case Brief: Knauff v Human Rights Tribunal of Ontario

Style of Cause and Citation:

Knauff v. Human Rights Tribunal of Ontario, 2025 ONSC 786

Facts:

- Mr Knauff filed a suit against his employer but settled it before the HRTTO came to a decision
- Knauff wants the Ontario Court to reconsider the HRTTO's rejection of his ethical veganism as a creed
- The court has the choice to exercise its discretion to grant relief, and mootness is one of the reasons why a court may reject an application for judicial review
- Knauff has no remaining claim before the HRTTO and cannot seek remedies in relation to his claims of discrimination

Issue:

- Is Knauff's application moot, and if so, should the court still hear it?

Decision:

- Knauff's application is moot and the courts did not find it justified to hear it under *Borowski*

Reasons:

- Under *Borowski* the court has the discretion to hear moot cases if the following factors are considered:
 - o Whether there is an adversarial context between the parties still
 - o Whether the expenditure of judicial resources on a moot matter is justified
 - o Whether a decision of the court on a moot matter would be an intrusion into the function of the legislative branch
- The court found that none of these 3 factors justified hearing the moot matter, and therefore the application for judicial review was dismissed

Ratio:

- For a court to hear a moot matter and exercise a judicial review conditions must be met under *Borowski* that make it in the courts interest to hear the matter, otherwise the case is dismissed